

WRITTEN ARGUMENTS ON BEHALF OF THE OPPOSITE PARTY

Matter: CC/441/2025

POINTS FOR DETERMINATION

- (i) Whether the Proposer's failure to answer the question relating to hypertension amounts to a breach of the duty of utmost good faith (uberrima fides).
- (ii) Whether the Opposite Party was justified in relying upon the Investigator's Report in repudiating the claim.
- (iii) Whether any deficiency in service is made out.

SUBMISSIONS

On point (i): The duty of utmost good faith requires a proposer to answer every material question fully and truthfully. Leaving a direct medical question unanswered, rather than answering it in the negative, is itself a failure of that duty and entitles the insurer to treat the proposal as incomplete on a material particular.

On point (ii): The Opposite Party was entitled to and did rely upon the professional findings of a duly appointed Investigator, who recorded a physician's note evidencing a hypertension diagnosis. The discrepancy in the recorded date of that note, between 14.02.2021 and 24.02.2021, is a clerical variance and does not detract from the substance of the finding.

The reply subsequently obtained from the hospital by the Complainant's counsel is a bare denial unsupported by the underlying OPD register itself, and does not conclusively establish the absence of any consultation.

On point (iii): Repudiation founded upon a bona fide investigation and a genuine, if debatable, reading of the duty of disclosure cannot constitute deficiency in service or unfair trade practice.

PRAYER

It is respectfully prayed that the complaint be dismissed with costs.

Filed on 20.01.2026